M/S. G.R. Sponge & Power Ltd vs Chhattisgarh State Electricity ... on 2 May, 2013

Before the Appellate Tribunal for Electricity
(Appellate Jurisdiction)

OSP No. 3 of 2013

Dated: 2nd May, 2013

Present : Hon'ble Mr. Justice M. Karpaga Vinayagam, Chairperson
Hon'ble Mr. Rakesh Nath, Technical Member

In the matter of:

M/s. G.R. Sponge & Power Ltd. ....Petitioner (s)
Versus
Chhattisgarh State Electricity Regulatory Commission.... Respondent(s)
& Anr.

Counsel for the Petitioner(s) : Mr. Raunak Jain, Advocate

Counsel for the Respondent (s): Mr. K.Gopal Choudhary
Mr. Arun Bhatnagar (Rep.) for R-2
Mr. Anand K Ganesan
Ms. Swapna Seshadri for R-1

ORDER

It is pointed out by the learned counsel for the Commission that since the reply has been filed now by the Petitioner before the State Commission in compliance with the directions given by this Tribunal the State Commission will continue the proceedings to dispose of the matter as early as possible.

The learned counsel for the Respondent No.2 prays that our observation in the Order dated 22.03.2013 that "some of the particulars in the bills issued by the distribution licensee are not correct" has to be deleted since they issued the bills only on the instructions issued by the Commission and as such the particulars mentioned in the bills cannot be said to be incorrect.

On the other hand, the learned counsel for the Petitioner submits that some of the particulars in the bills are not correct.

Any how, we are not inclined to go into the correctness of the statement of the learned counsel for the Petitioner with regard to the said observation made in the Order dated 22.03.2013, as the said observation cannot be considered to be our finding as against the distribution licensee.

In view of the fact that the reply has already been filed by the Petitioner, the State Commission is

directed to dispose of the matter as far as the petitioner is concerned as expeditiously as possible.

It is made clear that the bills referred to in the letter will be subject to the outcome of the result of the petition to be decided by the State Commission.

With these observations, the petition is disposed of.

(Rakesh Nath)
Technical Member

(Justice M. Karpaga Vinayagam)
Chairperson

ts/pg